

TENTATIVE RULING

ConnieJo Stubblefield, et al. vs. Michelle Foster, et al. (25CV003431)

Defendants' Motion to Strike Plaintiffs' Second Amended Complaint:

Defendants Michelle Foster, Thomas Foster, Margie Langemak, and Melanie Dangzalman ("Defendants") move to strike Plaintiffs' Second Amended Complaint ("SAC") on the basis that it was not timely filed and alternatively move to strike specific allegations in the SAC as "sham pleading."

The Motion to Strike is **DENIED**. The SAC was timely filed. The 14 day period provided to amend was extended under Code of Civil Procedure section 1013 by two court dates due to electronic service of the written order. (See *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 689 regarding the application of section 1013 to leave to amend following the sustaining of the Demurrer.) Additionally, the sham pleading doctrine allows a party the opportunity to explain changes to an amended pleading. (See *Smyth v. Berman* (2019) 31 Cal.App.5th 183, 195–196.) As observed by Defendants in the prior demurrer, several alleged dates in the earlier pleading appeared mistaken because the transfer of the property at issue was not recorded until August 2024 yet Plaintiffs alleged ownership in July 2023. Plaintiffs acknowledged these errors in their Opposition to the prior demurrer and explained that the dates used in the SAC were changed to address inadvertent errors. Such explanation is sufficient to avoid striking the SAC or Paragraph 11-12 under the "sham pleading" doctrine.

Defendants' Demurrer to Plaintiffs' Second Amended Complaint:

Defendants also demur to the SAC on the basis that the Plaintiffs did not own the property at issue at the time that the Plaintiffs allege the Defendants damaged the property.

The demurrer is **OVERRULED**. The SAC's allegations leave open the possibility that damage to the property occurred after closing, such that Plaintiffs may have a right to pursue this action based upon ownership at the time of the damage. Defendants' sole argument that Plaintiffs did not own the property at the time of damage is therefore not a proper argument on demurrer because material facts alleged in the complaint are treated as true for the purpose of ruling on the demurrer. (See *Kiseskey v. Carpenters' Trust for So. California* (1983) 144 Cal.App.3d 222, 228.) Further, the SAC also added new allegations to support the causes of action, such as paragraph 36 regarding private nuisance based upon conditions on the land during the Plaintiffs' ownership, which are not addressed in the demurrer.

Defendants' Request for Judicial Notice:

Request for Judicial Notice **GRANTED**.

The parties are to appear at the hearing of the above motions set on August 28, 2026.